IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No 302

C.A.(CAA)/10(AHM)2023

Order under Section 232-232

IN THE MATTER OF:

Madhurkamal (Thaltej) Complex Private Limited **.....Applicant**
Madhav (Thaltej) Complex Pvt. Ltd
Mandar (Thaltej) Complex Pvt. Ltd **.....Respondent**
Vyom Realty Pvt. Ltd
Shushna Complex Pvt. Ltd.
Viraj Complex Pvt. Ltd.
Shreekala Infrastructure Pvt. Ltd.
Siddhivinayk Securities Pvt. Ltd
Shaligram Investments Pvt. Ltd
Ganeshsagar Infrastructure Pvt. Ltd.

Order delivered on ..02/03/2023

Coram:

Dr. Madan B Gosavi, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant :
For the Respondent :

ORDER

The case is fixed for pronouncement of order. The order is pronounced in the open Court, vide separate sheet.

-Sd-
AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

-Sd-
DR. MADAN B GOSAVI
MEMBER (JUDICIAL)

NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
(COURT NO. II)

CA (CAA) 10/AHM/2023

IN THE MATTER OF THE COMPANIES ACT, 2013

[Sections 230-232 and read with other applicable provisions of the Companies Act, 2013]

In the matter of Scheme of Amalgamation

OF

Madhurkamal (Thaltej) Complex Private Limited,
(Applicant Company No. 1/Transferor Company No. 1)

AND

Madhav (Thaltej) Complex Private Limited,
(Applicant Company No. 2/Transferor Company No. 2)

AND

Mandar (Thaltej) Complex Private Limited,
(Applicant Company No. 3/Transferor Company No. 3)

AND

Vyom Realty Private Limited,
(Applicant Company No. 4/Transferor Company No. 4)

AND

Shushna Complex Private Limited,
(Applicant Company No. 5/Transferor Company No. 5)

AND

Viraj Complex Private Limited,
(Applicant Company No. 6/Transferor Company No. 6)

AND

Shreekala Infrastructure Private Limited,
(Applicant Company No. 7/Transferor Company No. 7)

AND

Siddhivinayak Securities Private Limited,
(Applicant Company No. 8/Transferor Company No. 8)

AND

Shaligram Investments Private Limited,
(Applicant Company No. 9/Transferor Company No. 9)

WITH

Ganeshsagar Infrastructure Private Limited,
(Applicant Company No. 10/Transferee Company)

Their Respective Shareholders and Creditors

Order Pronounced on: 02/03/2023

Coram:
DR. MADAN BHALCHANDRA GOSAVI,
HON'BLE MEMBER (JUDICIAL)
AJAI DAS MEHROTRA,
HON'BLE MEMBER (TECHNICAL)

MEMO OF PARTIES

Madhurkamal (Thaltej) Complex Private Limited,
(CIN: U45201GJ2002PTC041054)
Registered office at;
Ganesh Corporate House, 100 ft. Hebatpur,
Thaltej Road, Near Sola Bridge, Off
S.G. Highway, Ahmedabad Gujarat,
India -380054.

…Applicant Company No. 1/
Transferor Company No. 1

AND

Madhav (Thaltej) Complex Private Limited,
(CIN: U45201GJ2002PTC041056)
Registered office at;
Ganesh Corporate House, 100 ft. Hebatpur,
Thaltej Road, Near Sola Bridge, Off
S.G. Highway, Ahmedabad Gujarat,
India -380054.

…Applicant Company No. 2/
Transferor Company No. 2

AND

Mandar (Thaltej) Complex Private Limited,
(CIN: U45201GJ2002PTC041059)
Registered office at;
Ganesh Corporate House, 100 ft. Hebatpur,
Thaltej Road, Near Sola Bridge, Off
S.G. Highway, Ahmedabad Gujarat,
India -380054.

…Applicant Company No. 3/
Transferor Company No. 3

AND

Vyom Realty Private Limited,
(CIN: U45201GJ2002PTC041138)
Registered office at;
Ganesh Corporate House, 100 ft. Hebatpur,
Thaltej Road, Near Sola Bridge, Off
S.G. Highway, Ahmedabad Gujarat,
India -380054.

…Applicant Company No. 4/
Transferor Company No. 4

AND

Shushna Complex Private Limited,
(CIN: U45201GJ2002PTC041150)
Registered office at;
Ganesh Corporate House, 100 ft. Hebatpur,
Thaltej Road, Near Sola Bridge, Off
S.G. Highway, Ahmedabad Gujarat,
India -380054.

…Applicant Company No. 5/
Transferor Company No. 5

AND

Viraj Complex Private Limited,
(CIN: U45201GJ2002PTC041151)
Registered office at;
Ganesh Corporate House, 100 ft. Hebatpur,
Thaltej Road, Near Sola Bridge, Off
S.G. Highway, Ahmedabad Gujarat,
India -380054.

…Applicant Company No. 6/
Transferor Company No. 6

AND

Shreekala Infrastructure Private Limited,
(CIN: U45201GJ2002PTC041357)
Registered office at;
Ganesh Corporate House, 100 ft. Hebatpur,

Thaltej Road, Near Sola Bridge, Off
S.G. Highway, Ahmedabad Gujarat,
India -380054.

…Applicant Company No. 7/
Transferor Company No. 7

AND

Siddhivinayak Securities Private Limited,
(CIN: U71110GJ1995PTC027045)
Registered office at;
Ganesh Corporate House, 100 ft. Hebatpur,
Thaltej Road, Near Sola Bridge, Off
S.G. Highway, Ahmedabad Gujarat,
India -380054.

…Applicant Company No. 8/
Transferor Company No. 8

AND

Shaligram Investments Private Limited,
(CIN: U21019GJ1995PTC027044)
Registered office at;
Ganesh Corporate House, 100 ft. Hebatpur,
Thaltej Road, Near Sola Bridge, Off
S.G. Highway, Ahmedabad Gujarat,
India -380054.

…Applicant Company No. 9/
Transferor Company No. 9

AND

Ganeshsagar Infrastructure Private Limited,
(CIN: U45201GJ2002PTC041356)
Registered office at;
Ganesh Corporate House, 100 ft. Hebatpur,
Thaltej Road, Near Sola Bridge, Off
S.G. Highway, Ahmedabad Gujarat,
India -380054.

…Applicant Company No. 10/
Transferee Company

For the Applicants: Mr. Sandeep Singhi, Adv., a.w. Ms. Vishwa Shah Adv.

ORDER

1. The present joint Application is filed under Section 230-232 read with other applicable provisions of the Companies Act, 2013 (hereinafter referred to as "**the Act**"). The proposed Composite Scheme of Amalgamation are between **Madhurkamal (Thaltej) Complex Private Limited** (For brevity - Transferor Company No. 1) and **Madhav (Thaltej) Complex Private Limited** (For brevity - Transferor Company No. 2) and **Mandar (Thaltej) Complex Private Limited** (For brevity - Transferor Company No. 3) and **Vyom Realty Private Limited** (For brevity - Transferor Company No. 4) and **Shushna Complex Private Limited** (For brevity - Transferor Company No. 5) and **Viraj Complex Private Limited** (For brevity - Transferor Company No. 6) and **Shreekala Infrastructure Private Limited** (For brevity - Transferor Company No. 7) and **Siddhivinayak Securities Private Limited** (For brevity - Transferor Company No. 8) and **Shaligram Investments Private Limited** (For brevity - Transferor Company No. 9) with **Ganeshsagar Infrastructure Private Limited** (For brevity - Transferee Company) and their respective Shareholders and Creditors.

2. Affidavits are filed in support of the Application sworn for and on behalf of all the applicant companies by Mr. Krunal N. Patel being authorized representative for all the applicant companies duly authorized vide Board resolutions passed in the respective meeting of Board of Directors on 22.12.2022 for the respective applicant companies. It is represented that the Registered Office of all the Applicant Companies are situated within the territorial jurisdiction of this Tribunal and the Registrar of Companies, Ahmedabad.

3. It is submitted that the Transferor Company No. 1 having CIN: U45201GJ2002PTC041054 is incorporated, under the provisions of the Companies Act, 1956 and is presently having its Registered office at; Ganesh Corporate House, 100 ft. Hebatpur, Thaltej Road, Near Sola Bridge, Off S.G. Highway, Ahmedabad Gujarat, India -380054. The Authorised Share Capital of the Transferor Company No. 1 is Rs. 1,00,000/- which is divided into 10,000 Equity shares of Rs. 10/- each. The issued, Subscribed and Paid-up Share Capital of the Company is Rs. 1,00,000/- which is divided into 10,000 equity shares of Rs. 10/- each.

4. It is submitted that the Transferor Company No.2 having CIN: U45201GJ2002PTC041056 is incorporated, under the provisions of the Companies Act, 1956 and is presently having its Registered office at; Ganesh Corporate House, 100 ft. Hebatpur, Thaltej Road, Near Sola Bridge, Off S.G. Highway, Ahmedabad Gujarat, India -380054. The Authorised Share Capital

of the Transferor Company No. 2 is Rs. 1,00,000/- which is divided into 10,000 Equity shares of Rs. 10/- each. The issued, Subscribed and Paid-up Share Capital of the Company is Rs. 1,00,000/- which is divided into 10,000 equity shares of Rs. 10/- each.

5. It is submitted that the Transferor Company No. 3 having CIN: U45201GJ2002PTC041059 is incorporated, under the provisions of the Companies Act, 1956 and is presently having its Registered office at; Ganesh Corporate House, 100 ft. Hebatpur, Thaltej Road, Near Sola Bridge, Off S.G. Highway, Ahmedabad Gujarat, India -380054. The Authorised Share Capital of the Transferor Company No. 3 is Rs. 13,00,000/- which is divided into 1,30,000 Equity shares of Rs. 10/- each. The issued, Subscribed and Paid-up Share Capital of the Company is Rs. 1,39,820/- which is divided into 13,982 equity shares of Rs. 10/- each.
6. It is submitted that the Transferor Company No. 4 having CIN: U45201GJ2002PTC041138 is incorporated, under the provisions of the Companies Act, 1956 and is presently having its Registered office at; Ganesh Corporate House, 100 ft. Hebatpur, Thaltej Road, Near Sola Bridge, Off S.G. Highway, Ahmedabad Gujarat, India -380054. The Authorised Share Capital of the Transferor Company No. 4 is Rs. 1,00,000/- which is divided into 10,000 Equity shares of Rs. 10/- each. The issued, Subscribed and Paid-up Share Capital of the Company is Rs. 1,00,000/- which is divided into 10,000 equity shares of Rs. 10/- each.

7. It is submitted that the Transferor Company No. 5 having CIN: U45201GJ2002PTC041150 is incorporated, under the provisions of the Companies Act, 1956 and is presently having its Registered office at; Ganesh Corporate House, 100 ft. Hebatpur, Thaltej Road, Near Sola Bridge, Off S.G. Highway, Ahmedabad Gujarat, India -380054. The Authorised Share Capital of the Transferor Company No. 5 is Rs. 1,00,000/- which is divided into 10,000 Equity shares of Rs. 10/- each. The issued, Subscribed and Paid-up Share Capital of the Company is Rs. 1,00,000/- which is divided into 10,000 equity shares of Rs. 10/- each.
8. It is submitted that the Transferor Company No. 6 having CIN: U45201GJ2002PTC041151 is incorporated, under the provisions of the Companies Act, 1956 and is presently having its Registered office at; Ganesh Corporate House, 100 ft. Hebatpur, Thaltej Road, Near Sola Bridge, Off S.G. Highway, Ahmedabad Gujarat, India -380054. The Authorised Share Capital of the Transferor Company No. 6 is Rs. 1,00,000/- which is divided into 10,000 Equity shares of Rs. 10/- each. The issued, Subscribed and Paid-up Share Capital of the Company is Rs. 1,00,000/- which is divided into 10,000 equity shares of Rs. 10/- each.
9. It is submitted that the Transferor Company No. 7 having CIN: U45201GJ2002PTC041357 is incorporated, under the provisions of the Companies Act, 1956 and is presently having its Registered office at; Ganesh Corporate House, 100 ft. Hebatpur, Thaltej Road, Near Sola Bridge, Off S.G.

Highway, Ahmedabad Gujarat, India -380054. The Authorised Share Capital of the Transferor Company No. 7 is Rs. 1,00,000/- which is divided into 10,000 Equity shares of Rs. 10/- each. The issued, Subscribed and Paid-up Share Capital of the Company is Rs. 1,00,000/- which is divided into 10,000 equity shares of Rs. 10/- each.

10. It is submitted that the Transferor Company No. 8 having CIN: U71110GJ1995PTC027045 is incorporated, under the provisions of the Companies Act, 1956 and is presently having its Registered office at; Ganesh Corporate House, 100 ft. Hebatpur, Thaltej Road, Near Sola Bridge, Off S.G. Highway, Ahmedabad Gujarat, India -380054. The Authorised Share Capital of the Transferor Company No. 8 is Rs. 20,00,000/- which is divided into 2,00,000 Equity shares of Rs. 10/- each. The issued, Subscribed and Paid-up Share Capital of the Company is Rs. 1,00,000/- which is divided into 10,000 equity shares of Rs. 10/- each.

11. It is submitted that the Transferor Company No. 9 having CIN: U21019GJ1995PTC027044 is incorporated, under the provisions of the Companies Act, 1956 and is presently having its Registered office at; Ganesh Corporate House, 100 ft. Hebatpur, Thaltej Road, Near Sola Bridge, Off S.G. Highway, Ahmedabad Gujarat, India -380054. The Authorised Share Capital of the Transferor Company No. 9 is Rs. 20,00,000/- which is divided into 2,00,000 Equity shares of Rs. 10/- each. The issued, Subscribed and Paid-up

Share Capital of the Company is Rs. 1,00,000/- which is divided into 10,000 equity shares of Rs. 10/- each.

12. It is submitted that the Transferee Company having CIN: U45201GJ2002PTC041356 is incorporated, under the provisions of the Companies Act, 1956 and is presently having its Registered office at; Ganesh Corporate House, 100 ft. Hebatpur, Thaltej Road, Near Sola Bridge, Off S.G. Highway, Ahmedabad Gujarat, India -380054. The Authorised Share Capital of the Transferee Company is Rs. 3,08,00,000/- which is divided into 30,80,000 Equity shares of Rs. 10/- each. The issued, Subscribed and Paid-up Share Capital of the Company is Rs. 1,01,870/- which is divided into 10,187 equity shares of Rs. 10/- each.

13. It is submitted that transferor company No. 1, 2, 3, 4, 5, 6, 7 and transferee company are involved in the business of and act as promoters, organisers, estate agent and developers of lands, estates, residential, commercial, industrial properties, co-operative societies, associations, housing scaemes, shopping office complexes, townships, farms, farm houtes, holiday resorts, hotels, motels, guest houses, pools, dams, canals, hospitals, clubs, theaters, godowns, amusement parks, recreation centres, shopping malls, multiplexes, gardens and to finance with our without securities and/or interest for the same and to deal with and improve such properties either as owner or as agents such as to build, construct, erect, execute as undertake contract, carry out, establish, acquire, maintain remodel, alter design, reconstruct, work, control, let-out,

demolish, repair, develop, improve, enlarge, decor, furnish such properties, etc.

14. It is submitted that transferor company No. 8 is involved in the business to act as share and stock brokers, sub-brokers, Registrar to Issue, share transfer agents, underwriters, portfolio managers, Merchant Bankers, consultants, Advisor or Co-Managers to issue and share shoppe and to act as member of Regional or other Stock Exchange or National Stock Exchange or over the Counter Exchange of India, etc.

15. It is submitted that transferor company No. 9 is involved in the business to carry on in India or elsewhere the business of an investment company in all its branches and to sell, purchase, exchange, subscribe, acquire, undertake, underwrite, hold, auction, convert or otherwise to deal in all types of shares, securities, stocks, bonds, fully convertible debentures, partly convertible debentures, non-convertible debentures, debenture stocks, warrants, certificates, premium notes, mortgages, obligations, intercorporate deposit, call money deposits, public deposits, commercial papers and other similar instruments whether issued by government, semi government, local authorities, public sector undertakings, companies, corporations, co-operative societies, and other similar organisations at national and international levels., etc.

16. It is also represented that the registered offices of all the applicant companies are situated within the territorial jurisdiction of Registrar of Companies, Ahmedabad, Gujarat, which is falling under the jurisdiction of this Tribunal.

17. All the Applicant Companies have filed their respective Memoranda and Articles of Association inter alia delineating their object clauses along with their audited financial statement for the year of 2021-22 and unaudited financial statement for the quarter ended 31.12.2022, respectively.

18. It is further submitted that all the Applicant Companies are not listed companies, hence approval of SEBI, is not required. It is further submitted that the provisions of RBI and the Competition Act, 2002 are not applicable to the present Scheme and no notice is required to be issued to the said authority.

19. All the Applicant Companies have placed on record their Valuation Reports prepared by Registered valuer Mr. Shah Darshil Rajeshbhai Chartered Accountants (IBBI registration Number- IBBI/RV/06/2019/11593).

20. Rationale of the Scheme: The amalgamation would, *inter alia*, bring about:

i) Simplification of the corporate structure;

ii) Better, efficient and economical management and control over the running of businesses.

iii) Elimination of duplication in administrative costs and multiple record keeping thus resulting in cost savings, increased operational efficiencies and administrative convenience; and

iv) Better synergies, optimal utilization of resources and obtaining economics of scale.

21. The Board of Directors of all the applicant companies have unanimously approved the proposed scheme of amalgamation as contemplated above. Copies of respective board resolutions of all the applicant companies dated 22.12.2022 passed in their respective board meetings have been placed on record.

22. The certificates issued by the Statutory Auditor under section 133 of the Companies Act, 2013, of all the applicant companies are placed on record.

23. All the applicant companies have submitted that no investigation, winding up proceedings against all the Applicant Companies are pending under section 235 to 251 of the Companies Act, 2013.

24. With respect to the **Transferor Company No. 1,** it is stated that:

a) There are 8 equity shareholders and certificate from Chartered Accountant certifying list of shareholders is annexed. All equity shareholders have given their consent by way of affidavits for the proposed composite scheme of amalgamation. The copies of the consent affidavits of all equity shareholders are annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of equity shareholders.

b) There is NIL secured creditor and certificate from Chartered Accountant certifying list of the secured creditor is annexed. In view of the same, the question of holding the meeting of creditors does not arise.

c) There is 1 unsecured creditor and certificate from Chartered Accountant certifying list of the unsecured creditor is annexed with application. The copy of the consent affidavit of unsecured creditor is annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of unsecured creditors.

d) There is NIL preference shareholders and certificate from Chartered Accountant certifying list of the preference shareholders is annexed. In view of the same, the question of holding the meeting of preference shareholders does not arise.

25. With respect to the **Transferor Company No. 2,** it is stated that:

a) There are 8 equity shareholders and certificate from Chartered Accountant certifying list of shareholders is annexed. All equity shareholders have given their consent by way of affidavits for the proposed composite scheme of amalgamation. The copies of the consent affidavits of all equity shareholders are annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of equity shareholders.

b) There is NIL secured creditor and certificate from Chartered Accountant certifying list of the secured creditor is annexed. In view of the same, the question of holding the meeting of creditors does not arise.

c) There is 1 unsecured creditor and certificate from Chartered Accountant certifying list of the unsecured creditor is annexed with application. The copy of the consent affidavit of unsecured creditor is annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of unsecured creditor.

d) There is NIL preference shareholders and certificate from Chartered Accountant certifying list of the preference shareholders is annexed. In view of the same, the question of holding the meeting of preference shareholders does not arise.

26. With respect to the **Transferor Company No. 3,** it is stated that:

a) There are 5 equity shareholders and certificate from Chartered Accountant certifying list of shareholders is annexed and all equity shareholders have given their consent by way of affidavits for the proposed composite scheme of amalgamation. The copies of the consent affidavits of all equity shareholders are annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of equity shareholders.

b) There is NIL secured creditor and certificate from Chartered Accountant certifying list of the secured creditor is annexed. In view of the same, the question of holding the meeting of creditors does not arise.

c) There are 6 unsecured creditors, a certificate from Chartered Accountant certifying the list of the unsecured creditors is annexed. 5 unsecured creditors have given their consent affidavits forming 93.89% of total debt. Hence, the company is seeking dispensation for holding/convening the meeting of the unsecured creditors.

d) There is NIL preference shareholders and certificate from Chartered Accountant certifying list of the preference shareholders is annexed. In view of the same, the question of holding the meeting of preference shareholders does not arise.

27. With respect to the **Transferor Company No. 4,** it is stated that:

a) There are 3 equity shareholders and certificate from Chartered Accountant certifying list of shareholders is annexed and all equity shareholders have given their consent by way of affidavits for the proposed composite scheme of amalgamation. The copies of the consent affidavits of all equity shareholders are annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of equity shareholders.

b) There is NIL secured creditor and certificate from Chartered Accountant certifying list of the secured creditor is annexed. In view of the same, the question of holding the meeting of creditors does not arise.

c) There is 1 unsecured creditor and certificate from Chartered Accountant certifying list of the unsecured creditor is annexed with application. The copy of the consent affidavit of unsecured creditor is annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of unsecured creditor.

d) There is NIL preference shareholders and certificate from Chartered Accountant certifying list of the preference shareholders is annexed. In view of the same, the question of holding the meeting of preference shareholders does not arise.

28. With respect to the **Transferor Company No. 5,** it is stated that:

a) There are 2 equity shareholders and certificate from Chartered Accountant certifying list of shareholders is annexed and all equity shareholders have given their consent by way of affidavits for the proposed composite scheme of amalgamation. The copies of the consent affidavits of all equity shareholders are annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of equity shareholders.

b) There is NIL secured creditor and certificate from Chartered Accountant certifying list of the secured creditor is annexed. In view of the same, the question of holding the meeting of creditors does not arise.

c) There are 2 unsecured creditors and certificate from Chartered Accountant certifying list of the unsecured creditors is annexed with application. The copy of the consent affidavit of unsecured creditors are annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of unsecured creditors.

d) There is NIL preference shareholders and certificate from Chartered Accountant certifying list of the preference shareholders is annexed. In view of the same, the question of holding the meeting of preference shareholders does not arise.

29. With respect to the **Transferor Company No. 6,** it is stated that:

a) There are 2 equity shareholders and certificate from Chartered Accountant certifying list of shareholders is annexed and all equity shareholders have given their consent by way of affidavits for the proposed composite scheme of amalgamation. The copies of the consent affidavits of all equity shareholders are annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of equity shareholders.

b) There is NIL secured creditor and certificate from Chartered Accountant certifying list of the secured creditor is annexed. In view of the same, the question of holding the meeting of creditors does not arise.

c) There are 3 unsecured creditors and certificate from Chartered Accountant certifying list of the unsecured creditors is annexed with application. The copy of the consent affidavit of unsecured creditors are annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of unsecured creditors.

d) There is NIL preference shareholders and certificate from Chartered Accountant certifying list of the preference shareholders is annexed. In view of the same, the question of holding the meeting of preference shareholders does not arise.

30. With respect to the **Transferor Company No. 7,** it is stated that:

a) There are 2 equity shareholders and certificate from Chartered Accountant certifying list of shareholders is annexed and all equity shareholders have given their consent by way of affidavits for the proposed composite scheme of amalgamation. The copies of the consent affidavits of all equity shareholders are annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of equity shareholders.

b) There is NIL secured creditor and certificate from Chartered Accountant certifying list of the secured creditor is annexed. In view of the same, the question of holding the meeting of creditors does not arise.

c) There are 6 unsecured creditors and certificate from Chartered Accountant certifying list of the unsecured creditors is annexed with application. The copy of the consent affidavit of unsecured creditors are annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of unsecured creditors.

d) There is NIL preference shareholders and certificate from Chartered Accountant certifying list of the preference shareholders is annexed. In view of the same, the question of holding the meeting of preference shareholders does not arise.

31. With respect to the **Transferor Company No. 8,** it is stated that:

a) There are 3 equity shareholders and certificate from Chartered Accountant certifying list of shareholders is annexed and all equity shareholders have given their consent by way of affidavits for the proposed composite scheme of amalgamation. The copies of the consent affidavits of all equity shareholders are annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of equity shareholders.

b) There is NIL secured creditor and certificate from Chartered Accountant certifying list of the secured creditor is annexed. In view of the same, the question of holding the meeting of creditors does not arise.

c) There are 2 unsecured creditors and certificate from Chartered Accountant certifying list of the unsecured creditors is annexed with application. The copy of the consent affidavit of unsecured creditors are annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of unsecured creditors.

d) There is NIL preference shareholders and certificate from Chartered Accountant certifying list of the preference shareholders is annexed. In view of the same, the question of holding the meeting of preference shareholders does not arise.

32. With respect to the **Transferor Company No. 9,** it is stated that:

a) There are 3 equity shareholders and certificate from Chartered Accountant certifying list of shareholders is annexed and all equity shareholders have given their consent by way of affidavits for the proposed composite scheme of amalgamation. The copies of the consent affidavits of all equity shareholders are annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of equity shareholders.

b) There is NIL secured creditor and certificate from Chartered Accountant certifying list of the secured creditor is annexed. In view of the same, the question of holding the meeting of creditors does not arise.

c) There are 2 unsecured creditors and certificate from Chartered Accountant certifying list of the unsecured creditors is annexed with application. The copy of the consent affidavit of unsecured creditors are annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of unsecured creditors.

d) There is NIL preference shareholders and certificate from Chartered Accountant certifying list of the preference shareholders is annexed. In view of the same, the question of holding the meeting of preference shareholders does not arise.

33. With respect to the **Transferee Company,** it is stated that:

a) There are 5 equity shareholders and certificate from Chartered Accountant certifying list of shareholders is annexed and all equity shareholders have given their consent by way of affidavits for the proposed composite scheme of amalgamation. The copies of the consent affidavits of all equity shareholders are annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of equity shareholders.

b) There is NIL secured creditor and certificate from Chartered Accountant certifying list of the secured creditor is annexed. In view of the same, the question of holding the meeting of creditors does not arise.

c) There are 15 unsecured creditors and certificate from Chartered Accountant certifying list of the unsecured creditors is annexed with application. The copy of the consent affidavit of unsecured creditors are annexed with the application. Hence, the company is seeking dispensation for holding/convening the meeting of unsecured creditors.

d) There is NIL preference shareholders and certificate from Chartered Accountant certifying list of the preference shareholders is annexed. In view of the same, the question of holding the meeting of preference shareholders does not arise.

34. Taking into consideration the submissions and the documents filed therewith, we issue the following directions:

i) In relation to the Transferor Company No. 1:

a. With respect to Equity Shareholders:

Convening of the meeting of equity shareholders of the company is hereby dispensed with, in view of 100% consent affidavits of shareholders on record.

b. With respect to Secured Creditors:

There are no secured creditors. Hence, convening of the meeting of secured creditors is obviated.

c. With respect to Unsecured Creditors:

Convening of the meeting of unsecured creditors of the company is hereby dispensed with, in view of 100% consent obtained by the company.

d. With respect to Preference Shareholders:

There are no Preference Shareholders. Hence, convening of the meeting of Preference Shareholders is obviated.

ii) In relation to the Transferor Company No. 2:

a. With respect to Equity Shareholders:

Convening of the meeting of equity shareholders of the company is hereby dispensed with, in view of 100% consent affidavits of shareholders on record.

b. With respect to Secured Creditors:

There are no secured creditors. Hence, convening of the meeting of secured creditors is obviated.

c. With respect to Unsecured Creditors:

Convening of the meeting of unsecured creditor of the company is hereby dispensed with, in view of 100% consent obtained by the company.

d. With respect to Preference Shareholders:

There are no Preference Shareholders. Hence, convening of the meeting of Preference Shareholders is obviated.

iii) In relation to the Transferor Company No. 3:

a. With respect to Equity Shareholders:

Convening of the meeting of equity shareholders of the company is hereby dispensed with, in view of 100% consent affidavits of shareholders on record.

b. With respect to Secured Creditors:

There are no secured creditors. Hence, convening of the meeting of secured creditors is obviated.

c. With respect to Unsecured Creditors:

Convening of the meeting of unsecured creditors of the company is hereby dispensed with, in view of consent obtained from the unsecured creditors having 93.89% voting share.

d. With respect to Preference Shareholders:

There are no Preference Shareholders. Hence, convening of the meeting of Preference Shareholders is obviated.

iv) In relation to the Transferor Company No. 4:

a. With respect to Equity Shareholders:

Convening of the meeting of equity shareholders of the company is hereby dispensed with, in view of 100% consent affidavits of shareholders on record.

b. With respect to Secured Creditors:

There are no secured creditors. Hence, convening of the meeting of secured creditors is obviated.

c. With respect to Unsecured Creditors:

Convening of the meeting of unsecured creditor of the company is hereby dispensed with, in view of 100% consent obtained by the company.

d. With respect to Preference Shareholders:

There are no Preference Shareholders. Hence, convening of the meeting of Preference Shareholders is obviated.

v) In relation to the Transferor Company No. 5:

a. With respect to Equity Shareholders:

Convening of the meeting of equity shareholders of the company is hereby dispensed with, in view of 100% consent affidavits of shareholders on record.

b. With respect to Secured Creditors:

There are no secured creditors. Hence, convening of the meeting of secured creditors is obviated.

c. With respect to Unsecured Creditors:

Convening of the meeting of unsecured creditors of the company is hereby dispensed with, in view of 100% consent obtained by the company.

d. With respect to Preference Shareholders:

There are no Preference Shareholders. Hence, convening of the meeting of Preference Shareholders is obviated.

vi) In relation to the Transferor Company No. 6:

a. With respect to Equity Shareholders:

Convening of the meeting of equity shareholders of the company is hereby dispensed with, in view of 100% consent affidavits of shareholders on record.

b. With respect to Secured Creditors:

There are no secured creditors. Hence, convening of the meeting of secured creditors is obviated.

c. With respect to Unsecured Creditors:

Convening of the meeting of unsecured creditors of the company is hereby dispensed with, in view of 100% consent obtained by the company.

d. With respect to Preference Shareholders:

There are no Preference Shareholders. Hence, convening of the meeting of Preference Shareholders is obviated.

vii) In relation to the Transferor Company No. 7:

a. With respect to Equity Shareholders:

Convening of the meeting of equity shareholders of the company is hereby dispensed with, in view of 100% consent affidavits of shareholders on record.

b. With respect to Secured Creditors:

There are no secured creditors. Hence, convening of the meeting of secured creditors is obviated.

c. With respect to Unsecured Creditors:

Convening of the meeting of unsecured creditors of the company is hereby dispensed with, in view of 100% consent obtained by the company.

d. With respect to Preference Shareholders:

There are no Preference Shareholders. Hence, convening of the meeting of Preference Shareholders is obviated.

viii) In relation to the Transferor Company No. 8:

a. With respect to Equity Shareholders:

Convening of the meeting of equity shareholders of the company is hereby dispensed with, in view of 100% consent affidavits of shareholders on record.

b. With respect to Secured Creditors:

There are no secured creditors. Hence, convening of the meeting of secured creditors is obviated.

c. With respect to Unsecured Creditors:

Convening of the meeting of unsecured creditors of the company is hereby dispensed with, in view of 100% consent obtained by the company.

d. With respect to Preference Shareholders:

There are no Preference Shareholders. Hence, convening of the meeting of Preference Shareholders is obviated.

ix) In relation to the Transferor Company No. 9:

a. With respect to Equity Shareholders:

Convening of the meeting of equity shareholders of the company is hereby dispensed with, in view of 100% consent affidavits of shareholders on record.

b. With respect to Secured Creditors:

There are no secured creditors. Hence, convening of the meeting of secured creditors is obviated.

c. With respect to Unsecured Creditors:

Convening of the meeting of unsecured creditors of the company is hereby dispensed with, in view of 100% consent obtained by the company.

d. With respect to Preference Shareholders:

There are no Preference Shareholders. Hence, convening of the meeting of Preference Shareholders is obviated.

x) In relation to the Transferee Company:

a. With respect to Equity Shareholders:

Convening of the meeting of equity shareholders of the company is hereby dispensed with, in view of 100% consent affidavits of shareholders on record.

b. With respect to Secured Creditors:

There are no secured creditors. Hence, convening of the meeting of secured creditors is obviated.

c. With respect to Unsecured Creditors:

Convening of the meeting of unsecured creditors of the company is hereby dispensed with, in view of 100% consent obtained by the company.

d. With respect to Preference Shareholders:

There are no Preference Shareholders. Hence, convening of the meeting of Preference Shareholders is obviated.

35. In compliance with Section 230(5) of the Act and Rule 8 of the CAA Rules, each of the Applicant(s) shall serve the notice of the joint application on the following Authorities namely, (i) to the Central Government through the Regional Director, North Western Region; (ii) to the Registrar of Companies, Gujarat, (iii) to the Income Tax Department along with full details of assessing officer and PAN numbers of all the applicant companies with the copy also to the Chief Commissioner of Income Tax Office (iv) to the Official Liquidator attached to High Court, Gujarat, to such other Sectoral Regulatory

Authorities who may govern the working of the respective companies involved in the Scheme, so that timely and proper reply may be filed.

36. The Application is allowed and disposed of in terms of the above directions.

-Sd-	**-Sd-**
AJAI DAS MEHROTRA	**DR. MADAN B. GOSAVI**
MEMBER (TECHNICAL)	**MEMBER (JUDICIAL)**

Abhishek Singh